

Calendar Line # 6
Case Name Jennifer Voges et al vs Huiqiong Deng et al
Case No. 25CV483365
Demurrer Before the court is defendant El Camino Health dba El Camino Hospital’s demurrer to plaintiff’s complaint for damages. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. <u>I. BACKGROUND</u> Plaintiff Jennifer Voges (“Voges”) was a long-term prescribed benzodiazepine user and was in active benzodiazepine withdrawal when she sought and received care from defendant El Camino Health dba El Camino Hospital (“ECH”). (Complaint, ¶8). Despite plaintiff Voges’s benzodiazepine dependence and active withdrawal, defendant ECH staff administered opiates, including morphine and Dilaudid (hydromorphone), creating a high risk combination known to increase respiratory and neurologic dangers. (Complaint, ¶9). As a result of the contradicted opioids, plaintiff Voges suffered a drug-induced crisis requiring Narcan to reverse opiate toxicity and she was then given anti-psychotic medication that is contraindicated in benzodiazepine withdrawal, further destabilizing her condition. (Complaint, ¶10). Plaintiff Voges required Narcan after opiate administration and was given antipsychotic medication that worsened her condition. (<i>Id.</i>). Defendant ECH failed to obtain informed consent for, or disclose, the Narcan administration during or after the event. (Complaint, ¶11). Defendant ECH never informed plaintiff Voges or her family that Narcan had been administered, did not obtain consent, and did not disclose the intervention afterward. (<i>Id.</i>). Plaintiff Voges and her family later discovered this only upon review of medical records. (<i>Id.</i>). Defendant ECH staff refused to provide plaintiff Voges’s baseline, prescribed, benzodiazepine and refused her progesterone, despite documented prescription and visible withdrawal symptoms, accelerating her deterioration. (Complaint, ¶12). Plaintiff Voges received care at defendant ECH between December 31, 2024 and January 8, 2025. (Complaint, ¶2). Rather than stabilizing plaintiff Voges, defendant ECH transferred her to defendant Aspen Skilled Healthcare, Inc. dba Woodlands Healthcare Center (“Woodlands”), a skilled nursing facility, for physical therapy even though she was medically unstable and required medical, not rehabilitative, care beyond the scope of a skilled nursing facility. (Complaint, ¶12). Defendant Woodlands lacked qualified personnel to properly manage benzodiazepine withdrawal and opiate complications. (<i>Id.</i>). Plaintiff Voges’s husband ultimately removed plaintiff Voges and transported her to defendant Stanford Health Care dba Stanford Hospital (“Stanford”) where she was immediately admitted. (Complaint, ¶15). On December 30, 2025, plaintiffs Voges and Darren Voges filed a complaint against defendant ECH, among others, asserting causes of action for: (1) Professional Negligence (2) Medical Battery (3) Negligent Hiring, Supervision, and Retention (4) Negligence Per Se (5) Loss of Consortium On May 19, 2026, defendant ECH filed the motion now before the court, a demurrer to the second and fourth causes of action of plaintiffs’ complaint. <u>II. LEGAL STANDARD</u>

Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 (*Hahn*)). When considering demurrers, courts accept all well pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*)).

III. ANALYSIS

A. MEDICAL BATTERY

Our high court has made it clear that battery and lack of informed consent are separate causes of action. A claim based on lack of informed consent—which sounds in negligence—arises when the doctor performs a procedure without first adequately disclosing the risks and alternatives. In contrast, a battery is an intentional tort that occurs when a doctor performs a procedure without obtaining any consent. (*Saxena v. Goffney* (2008) 159 Cal.App.4th 316, 324).

Plaintiff Voges’s second cause of action is labeled as one for medical battery but then alleges, in relevant part, “Defendants . . . performed medical interventions without obtaining [plaintiff Voges’s] informed consent or by failing to disclose material information, risks, alternatives, or by misrepresenting necessity, including Narcan administration at [ECH], concealed administration of anti-psychotics” (Complaint, ¶26).

Regardless of whether plaintiff Voges is asserting a lack of informed consent or the lack of consent entirely, defendant ECH contends no consent was required under the circumstances alleged here, i.e., plaintiff Voges “suffered a drug-induced crisis requiring Narcan to reverse opiate toxicity.” (Complaint, ¶10). Defendant ECH relies upon *Cobbs v. Grant* (1972) 8 Cal.3d 229, 243 (*Cobbs*), where the court explained, “A patient should be denied the opportunity to weigh the risks only where it is evident he cannot evaluate the data, as for example, where there is an emergency or the patient is a child or incompetent. For this reason the law provides that in an emergency consent is implied.” (See also *Burchell v. Faculty Physicians & Surgeons etc.* (2020) 54 Cal.App.5th 515, 525—“a doctor may act beyond the patient's express authorization in ‘life- or health-threatening situations.’”).

According to defendant ECH, Narcan is “typically used as an emergency reversal agent when a patient is in active opiate toxicity, which constitutes an acute medical emergency. At the time, Ms. Voges would be in a condition where she was unable to adequately consent and delay could potentially lead to respiratory arrest or even death.”¹ While this may seem like general knowledge to defendant, such facts are not found in the plaintiff’s complaint. Plaintiff Voges’s own use of the word “crisis” may be the basis for the court to infer that her situation was an “emergency” situation, but the court is nevertheless persuaded by plaintiff Voges that whether her situation was one where her consent was not required is better left to a trier of fact.

Moreover, as plaintiff Voges points out in her opposition, the complaint further alleges defendant ECH “concealed administration of anti-psychotics.” (Complaint, ¶26; see also ¶10—plaintiff Voges “was [, subsequent to the reversal of opiate toxicity,] given anti-psychotic medication that is contraindicated in benzodiazepine withdrawal.”). The reasonable inference to be drawn from the allegation that such administration was “concealed,” is that the drugs were administered without plaintiff Voges’s knowledge and, consequently, without plaintiff Voges’s consent. The allegation of “concealed administration of anti-psychotics” is sufficient to support plaintiff Voges’s second cause of action for medical battery.

¹ See page 8, lines 6 – 9, of the memorandum of points and authorities in support of defendant [ECH’s] demurrer to plaintiff’s complaint for damages.

Accordingly, defendant ECH's demurrer to the second cause of action of plaintiff Voges's complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for medical battery is OVERRULED.

B. NEGLIGENCE PER SE

Plaintiff Voges's fourth cause of action, entitled "Negligence Per Se," alleges, in relevant part, that defendants "violated patient-protection duties requiring informed consent for non-emergent interventions and post-emergency disclosure/ documentation of medications administered ... and disclosure of material findings." (Complaint, ¶34).

"Section 669 of the Evidence Code sets forth the doctrine commonly called negligence per se. It provides that negligence of a person is presumed if he violated a statute or regulation of a public entity, if the injury resulted from an occurrence that the regulation was designed to prevent, and if the person injured was within the class for whose protection the regulation was adopted. This presumption may be rebutted by proof that the violator did what might reasonably be expected of a person of ordinary prudence, acting under similar circumstances, who desired to comply with the law." (*Klein v. BIA Hotel Corp.* (1996) 41 Cal.App.4th 1133, 1140). Negligence per se is not a cause of action. "The negligence per se doctrine actually relates to the burden of proof." (*Cade v. Mid-City Hospital Corp.* (1975) 45 Cal.App.3d 589, 596). If the elements are met, the doctrine merely creates an evidentiary presumption in support of a claim for negligence.

" '[T]he doctrine of negligence per se is not a separate cause of action, but creates an evidentiary presumption that affects the standard of care in a cause of action for negligence.' [Citation.] [¶] The doctrine of negligence per se does not provide a private right of action for violation of a statute. [Citation.]" (*Johnson v. Honeywell Intern. Inc.* (2009) 179 Cal.App.4th 549, 555–56).

Of course, plaintiff Voges will be allowed to pursue/ apply the doctrine of negligence per se at time of trial, but since negligence per se is not a cause of action and plaintiff Voges has already stated a cause of action for professional negligence, defendant ECH's demurrer to the fourth cause of action of plaintiff Voges's complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for negligence per se is SUSTAINED WITHOUT LEAVE TO AMEND.

IV. CONCLUSION

Based on the foregoing, the Court Orders as follows: (1) Defendant ECH's demurrer to the second cause of action of plaintiff Voges's complaint for medical battery is OVERRULED; and (2) Defendant ECH's demurrer to the fourth cause of action of plaintiff Voges's complaint for negligence per se is SUSTAINED WITHOUT LEAVE TO AMEND. The Court will prepare the formal Order.